FLEEKFAIR TRADING (PVT) LIMITED

AND

ALLEN SIBANDA

Vs

CHENGBAO MINING (PVT) LIMITED

AND

ANESU GOLD (PVT) LIMITED

AND

PROVINCIAL MINING DIRECTOR- MIDLANDS PROVINCE.

IN THE HIGH COURT OF ZIMBABWE.
NDLOVU J
BULAWAYO 16 & 04 MAY 2026

Rescission of Judgment Application.

Adv. T. Mpofu, for the applicants
T.G. Chigudugudze, for the 1st respondent.
No Appearance for the 2nd & 3rd respondents.

NDLOVU J: This is an opposed court application for rescission of the judgment of this court granted in favour of the 1st respondent under **HCBC205/25** on the 22nd of July 2025.

BACKGROUND

The 1st applicant in this matter is a company called Fleekfair Trading (Private) Limited, duly represented by its director, Allen Sibanda, who is also the 2nd applicant in his personal capacity.

The 1st respondent is Chengbao Mining (Pvt) Ltd, a company incorporated in terms of this country's laws. The 2nd respondent is a duly registered company, Anesu Gold (Pvt) Limited, the registered owner of C-Mine. The 3rd respondent is the Provincial Mining Director-Midlands Province.

The present application is made in terms of *Rule 29 (1) (a)* of the **High Court Rules, 2021**. In the main matter, the 1st respondent in the present matter was the applicant who sought relief against the 2nd respondent on the basis that the parties entered into tribute agreements in respect of certain mining claims in a mine called C-Mine in 2024. The application arose from the 2nd respondent's arbitrary cancellation of the tribute agreement with the 1st respondent. Following the said cancellation, the 2nd applicant *in casu* occupied the mine and purported to be in occupation under a tribute agreement he entered into with the 2nd respondent. The 1st respondent alleged that the cancellation of its tribute agreement was illegal and the tribute between the 2nd respondent and the 2nd applicant *in casu* was a nullity. The 2nd respondent maintained a stance that the tribute agreement had been properly cancelled and that it had now entered into an agreement with the 2nd applicant in the present matter. The court found in favour of the 1st respondent, and ordered that the 2nd applicant *in casu* be interdicted from conducting any mining activities in C-Mine.

APPLICANTS' CASE

The applicants in this matter seek the rescission of judgment on the basis that it was erroneously granted, as the 1st applicant, who is affected by the judgment was never cited in the matter and the 2nd applicant, though cited, was never made aware of the proceedings and the opposing affidavit purportedly filed therein by himself were falsely filed by his then legal practitioners, who for all intents and purposes were on a frolic of their own.

The applicants further stated that they have since appealed this court's decision; however, out of an abundance of caution, they have filed the present application, as the appeal may be futile, in that the 1st applicant cannot appeal against a decision in a matter in which it was not cited. At the hearing of the matter, it turned out that the appeal had been struck off the roll for one reason or another and efforts to reinstate it had failed. In the appeal, the 2nd respondent and the 2nd applicant were represented by the same legal practitioners.

The 1st applicant states that it occupies C-Mine under a tribute agreement whose grantor is the 2nd respondent and has occupied the mine since 2022. The tribute agreement was attached as an exhibit. According to the applicants, the agreement was renewed in 2025. Sample remittances made to ZIMRA, showing that the 1st applicant was conducting operations at the mine, were also attached. The applicant also attached documents to show the

commissioning of the plant, as well as a list of equipment that was acquired by the 1st applicant, as well as EIA certificates relating to the 1st applicant, together with a confirmation from the Environmental Management Agency (EMA) confirming that the 1st applicant has been conducting mining activities at C-Mine.

The 2nd applicant further distanced himself from the signatures in the opposing papers and attached a report from a handwriting expert as evidence thereto. Attached to the application is also an affidavit from one Tatenda Chidyamakono, a legal practitioner under the employ of Mutendi, Mudisi and Shumba Legal Practitioners, the 2nd applicant's erstwhile lawyers, confirming that they had acted without the 2nd applicant's instructions when they opposed **HCBC205/25.**

1ST RESPONDENT'S CASE

Preliminary Points.

The 1st respondent raised three points in /imine in its opposition to this application.

1. ***The Appeal.***

   The 1st respondent argued that the 2nd applicant's appeal against **HB205-25**, being a judgment sought to be rescinded *in casu,* bars the instant appeal. This was on the basis that by filing an appeal, the 2nd applicant confirms that the order is final and definitive and thus an appealable decision cannot be rescinded. According to the 1st respondent, the 2nd applicant, through the appeal, made judicial admissions to the effect that he participated in **HCBC205/25**, as the relief sought in his appeal is a dismissal of the 1st respondent's application on the merits. At the time of the hearing, this point had been overtaken by events, and, in any case, as it might have applied to the 2nd applicant, it did not apply to the 1st applicant; therefore, it was inherently unable to conclude this matter before me. The preliminary point is therefore dismissed.

2. ***Estoppel/Pre-emption.***

   The 2nd *point in limine* was that the applicants are estopped by acquiescence and/or pre-emption. The 2nd respondent averred that prior to instituting the proceedings under **HCBC205/25.** The 1st respondent sought the entity through the ZRP Mineral Flora and Fauna Unit, which was interfering with its rights, and it was established from the 2nd applicant and also through his erstwhile legal practitioners that he was the one

conducting the mining activities. The same was admitted even by the 2nd respondent *in casu* in its pleadings in **HCBC205/25.** Service was also done on the person of the 2nd applicant, and an affidavit confirming the same was attached by the 1st respondent.

This point taken by the 1st respondent pivoted the 1st respondent's defence to the application on the merits. It was, in my view, not available to be taken as a point *in limine*, as it would have amounted to silencing the applicants without affording them their right to be heard on the merits. In any case, like the first point, it did not apply to the 1st applicant. The point *in limine* is therefore dismissed.

3. ***Condonation.***

The 3rd point was that the 2nd applicant purported that although he was cited, he did not participate in the proceedings. The 1st respondent, therefore, contends that he ought to have sought condonation in terms of *Rule 59 (7)* of the ***High Court Rules, 2021,*** for him to have audience before this court. I dismissed this point on the basis that it lacked the muscle to finalise this matter.

THE MERITS

On the merits, the 1st respondent argued that the 1st applicant has no interest in the main matter, as the 2nd respondent, *in casu,* when defending **HCBC205/25**, stated that the agreement was between it and the 2nd applicant and attached the agreement to that effect. Never did he mention the 1st applicant as being part of that agreement. According to the 1st respondent, a perusal of the docket done at the office of the 3rd respondent prior to instituting proceedings under **HCBC205/25** showed no history of any tribute agreement with the 1st applicant.

Further, the documents attached by the applicants, namely, sample payments made to ZIMRA and the EIA certificates, make no reference to the 1st applicant. The EIA certificates refer to a Start Mining Syndicate, which is clearly not the 1st applicant.

The only documents that purport to include the 1st applicant are the Returns of Output and Disposal. They clearly show that, in place of Tributor, it had been written N/A; however, an addition was made for Fleekfair Trading. The 1st respondent attached an affidavit from a Forensic Scientist (Consultant), who stated that the words "Fleekfair Trading" were added on a later date and that the handwriting differed.

In respect of the 2nd Applicant the 1st Respondent argued that the 1st Applicant was served and deliberately chose to do nothing about that litigation and was therefore in wilful default.

ISSUE FOR DETERMINATION

1. ***Whether or not the applicants have managed, on a balance of probabilities, to make a case for rescission of judgment?***

APPLICATION OF THE LAW TO THE FACTS

The present application was made in terms of rule 29 (1) (a) of the High Court Rules (2021), which provides the following;

> *"The court or a judge may, in addition to any other powers it, he or she may have, on its own initiative or upon the application of any affected party, correct, rescind or vary-*
>
> *(a) an order or judgment erroneously sought or erroneously granted in the absence of any affected party thereby"*[1]

It goes without saying that the onus is on the applicant to prove that they are affected parties and that the judgment was entered in their absence.

Adv. Mpofu argued that in this kind of application, the applicant must establish an error. Put differently, the question is "Had the Court been aware of certain things about the matter when it heard it, would it have granted the order it granted or not?" The strength of the applicant's case in the main matter does not and should not come for consideration at this stage. That argument has merit to the extent necessary.

The applicant must;

[a] Establish a legal interest in the subject matter of the litigation,

[b] Show that he is affected by the decision of the Court in resolving the dispute, and

[c] Show that he was not cited in the litigation.

[d] For the one who was cited, served or not served with the primary process, and did not attend the hearing or participate in the litigation leading up to the hearing, he must

plead the reasons for his default in participating in the litigation despite having been served with the initial process.

It is basic that the reasons for non-participation be pleaded and evaluated in such an application to convince the court to take the extraordinary course of revisiting its judgment when ordinarily it should not by operation of the law. The process of evaluating the reasons for the default necessarily includes looking at and evaluating the facts as localised to what actuated the default, and the evidence adduced in support of the application for rescission of the judgment.

THE FIRST APPLICANT.

The first applicant is a legal person. It has no mouth, ear, or eye. It acts and communicates through its officials, including its Directors. The second applicant is the 1st applicant's Director. The 2nd applicant claimed to be the one mining the claim. The 2nd respondent in this matter stated the same. Both shielded the 1st applicant from the 1st respondent. The 2nd applicant was served with the process in the main matter. This was not opportunistic. He knew of the 1st applicant as its Director. He knew or ought to have known of the activities of the 1st applicant, if any. He surely deliberately misled the 1st respondent and, by extension, the Court in that litigation. For the 1st respondent to have cited the 1st applicant, it could have done so if it had known of its existence and activities in the mining claim in dispute. Only then would it cite it. The 1st respondent did not sue in the dark; it sought clarity, and it was deliberately misled by two key players, including the 1st Applicant's legal practitioners

In such a case, the court should not allow a blanket to be thrown over its head, under the hallowed corporate veil. The circumstances of this case do not allow for the non-citation of the 1st Applicant to be plainly viewed. This matter has a unique character arising from the relationship between the two applicants and the conduct of the 2nd Applicant and the 2nd Respondent before the 1st Respondent filed the initial pleadings in **HCBC 205/25**. To ignore the above would be a failure to guard the integrity of the Courts.

There comes a time when a company cannot be saved from the actions of its Director[s], especially where the company has not complained of those actions, like in this case. For the

above reasons alone, I find that the 1st applicant deliberately defaulted in participating in the matter.

The 1st applicant contends that it was never cited, yet it is the company that has been on the ground conducting mining activities in the mine in question. In support of these averments, the applicants attached ZIMRA income tax provisional returns for C-Mine. However, a review of the return shows that no mining activities were conducted. Also, the applicants contend that the 1st applicant has been conducting mining since 2022; however, they conveniently attached only returns for the 2nd quarter of 2025, only after the judgment in the main matter was attached. Nothing turns from the ZIMRA returns in support of the applicants' averments.

In addition, the applicants attached returns of output and disposal. The name "Fleekfair Trading Pvt Ltd" appears in ink that differs from the rest of the document, even on the words "N/A". Expert evidence, which, in my opinion, is superfluous, shows that the addition was made on a later date, and that at the time the documents were authored in the place of Tributor, it was written as non-applicable. In a document in the bundle, the applicant's name is missing, and the document appears in its true and original form.

Additionally, in support of its case, the applicants attached EIA certificates. These EIA certificates relate to a person named Benjamin Chikwakwata and a company named Start Mining Syndicate. Nothing in those certificates speaks of the 1st applicant. The invoices and receipts from the Ministry of Mines relate to A. Sibanda is the 2nd applicant, not the 1st applicant.

The documents attached by the applicants as proof that the 1st applicant was the affected party who was neither cited nor joined in the main matter actually show that the 1st applicant has never been the party conducting the mining. In addition, the applicants have not at any point attacked the factual averments made by the 2nd respondent in the main matter to the effect that indeed the 2nd respondent entered into an agreement with the 2nd applicant, Allen Sibanda, after purportedly cancelling the tribute agreement with the 1st respondent *in casu*.

With those facts remaining undisputed, clearly, the first applicant is not being candid with the court.

The Second Applicant.

The argument is that the 2nd applicant, though cited, was never made aware of the proceedings in the main matter, and his legal practitioners acted on a frolic of their own. To prove this assertion, the 2nd applicant attached an affidavit from Tatenda Chidyamakono, a legal practitioner in the employ of the 2nd applicant's erstwhile legal practitioners, who states that she was instructed by her principal, Mr Mudisi, to handle the matter as he was indisposed and that she never took instructions from the 2nd applicant and basically acted on her own. While it is not uncommon for senior counsel to instruct their subordinates at their law firms to handle their matters, it remains that it would have been prudent for Mr Leopold Mudisi, who was the legal practitioner of record, to depose to the affidavit to substantiate these allegations, as at this point, Miss Chidyamakono is unknown to the record under **HCBC205/25.**

In the absence of Mr Mudisi's affidavit or at least that of Advocate Method Ndlovu, who argued the matter, evidence from a legal practitioner who did not participate in the matter does not assist the 2nd applicant. The 2nd applicant was served. In all probability, he consulted his legal practitioners. I say this because, unless served with the initial process, legal practitioners do not realise that their clients are in trouble when they actually are, until the client approaches them. The 2nd applicant cannot have this court believe that his explanation has merit. He deliberately abstained from attending Court.

The 1st respondent is not in a position to answer for actions purportedly done by the 2nd applicant's erstwhile lawyers. Nonetheless, in the absence of *prima facie* proof that the 2nd applicant never gave the lawyers any instructions, the issue remains between him and his legal practitioners and should not affect the 1st respondent or the extant judgment.

In *Lewenod Enterprises Private (Ltd) v Freight Africa Logistics* HH653-15, the court had the following to say;

> "In a civil case, the plaintiff must prove its case on a balance of probabilities. This has been interpreted to mean that:
>
> "It must carry a reasonable degree of probability but not so high as required in a criminal case. If the evidence is such that the tribunal can say" we think it more probable than not", the burden is discharged, but if the probabilities are equal, it is not.

An analysis of the above authority and the authorities cited therein suggests that one must look at the evidence of the party on whom the onus lies and assess whether that evidence carries a reasonable possibility of truthfulness compared to the evidence of the other party.

The question arises whether, in the circumstances of this case, the applicants, especially through the 2nd applicant, are not abusing the Court process. Courts have a duty to themselves to rebuff any means by which litigants attempt to abuse them.

DISPOSITION.

The applicants have failed to make a case warranting the relief they seek. They have adduced self-defeating evidence. They attached questionable documents, some bearing names of unknown parties and some showing alterations. Clearly, one cannot suggest that the applicants have proved their case on the balance of probabilities. The applicants' case lacks merit. The application must be dismissed with costs.

ORDER

The application is hereby dismissed with costs.

NDLOVU J

Mandipa, Makwara & Chikukwa Legal Practice, applicants' legal practitioners
Madanhe & Chigudugudze, 1st respondent's legal practitioners